

25STCV18167 25STCV18167

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-21

Motion: DEFENDANT'S MOTIONS TO COMPEL INITIAL RESPONSES TO REQUESTS FOR PRODUCTION, SPECIAL INTERROGATORIES, AND FORM INTERROGATORIES, SET ONE DEFENDANT'S MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE ADMITTED DEFENDANT'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT

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Case Number: 25STCV18167 Hearing Date: July 21, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

REBECCA

FIERRO,

Plaintiff,

vs.

SUBARU OF AMERICA, INC.; and DOES 1 through 10, inclusive,

Defendants.

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CASE

NO.: 25STCV18167

[TENTATIVE] ORDER RE:

DEFENDANT'S MOTIONS TO

COMPEL INITIAL RESPONSES TO REQUESTS FOR PRODUCTION, SPECIAL INTERROGATORIES,
AND FORM INTERROGATORIES, SET ONE

DEFENDANT'S MOTION TO DEEM

REQUESTS FOR ADMISSION, SET ONE ADMITTED

DEFENDANT'S DEMURRER AND

MOTION TO STRIKE FIRST AMENDED COMPLAINT

Dept. 733

8:30 a.m.

July 21, 2026

I.

INTRODUCTION

This is a

Song-Beverly action.

On June 25, 2025,

Plaintiff Rebecca Fierro ("Plaintiff") filed a complaint against Defendant Subaru of America, Inc. ("Defendant").

On February 2, 2026, Plaintiff filed a first amended complaint ("FAC"), alleging causes of action for (1) Violation of Subdivision (d) of Civil Code Section 1793.2, (2) Violation of Subdivision (b) of Civil Code Section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2, (4) Breach of the Implied Warranty of Merchantability, and (5) Fraudulent Inducement – Concealment.

On March 5, 2026, Defendant filed the instant demurrer and motion to strike. On July 8, 2026, Plaintiff filed oppositions. On July 14, 2026, Defendant filed replies.

On May 12, 2026, Defendant filed the instant motions to compel initial responses to Requests for Production, set one ("RFPDs"); Special Interrogatories, set one ("SROGs"); Form Interrogatories, set one ("FROGs") and to deem Requests for Admission, set one ("RFAs") admitted (together, "Discovery Requests"). No opposition was filed to these motions.

II.

LEGAL STANDARD

1.

Interrogatories

A responding party has 30 days after service of interrogatories to serve their responses on the propounding party. (Code Civ. Proc. § 2030.260(a).) However, if interrogatories are served by electronic service, a responding party has an additional two (2) court days to respond. (Id. § 1010.6(a)(3)(B).)¿

If the responding party fails to timely respond to the interrogatories, "The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 1010.010)." (Code Civ. Proc. § 2030.290(a).)¿

Furthermore, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) And “[u]nlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a ‘meet and confer’ requirement.” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Failure to timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2030.290 (a)(1)-(2).)

2.

Requests for Production

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc. § 2031.260 (a).) The propounding and responding parties may agree to extend the time for response. (Id. § 2031.270(a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Id. § 2031.300 (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Id. § 2031.300 (a).)

There is no time limit for a motion to compel responses to requests for production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Id. §§ 2024.020 (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Id. § 2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

The party who fails to serve a timely response to a demand for inspection waives any objection to the demand unless the court finds that the party has subsequently

served a response that is in substantial compliance or party's failure was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.300 (a)(1)-(2).)

3.

Requests for Admission

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared" (Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

4.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a

view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . .” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

5.

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III.

DISCUSSION

1.

Discovery Motions

Defendant moves

to compel Plaintiff to provide verified responses without objections to

Defendant's FROGs, SROGs, RFPDs and

to deem admitted its RFAs.

Defendant

provides that on April 1, 2026, it served Plaintiff its Discovery Requests.

(Kreshek Decl., ¶ 4, Ex. 1.) Thus,

Plaintiff's responses were due on or before May 5, 2026. (Id. ¶ 5.) However, Defendant's counsel contends that to date, Defendant has not received any responses to the Discovery Requests. (Id. ¶ 6.) Thus, Defendant's discovery motions are granted.

a.

Sanctions

Defendant requests

\$987.50 in sanctions for each of the four discovery motions filed.

When a request for monetary sanctions is

concurrently filed with a motion to compel responses, "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code of Civ. Proc., § 2023.030(a).) Additionally, "If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust." (Ibid.)

Defendant's

counsel declares that his hourly rate is \$265.00, which the Court finds reasonable. (Kreshek Decl., ¶ 7.) Counsel also declares that he spent one (1) hour preparing each motion, anticipates spending 1.5 hours reviewing each opposition and preparing each reply brief, and anticipates spending one (1) hour preparing for the hearing. (Id. ¶ 6.) The Court finds this excessive given the simplicity of the issues involved. The Court will eliminate any anticipated time spent reviewing oppositions or drafting reply briefs, as no opposition has been filed. The Court will also award a total of 2.5. hours spent drafting all discovery motions and attending the hearing. This totals \$662.50.

2.

Demurrer

Defendant demurs

to the fourth and fifth causes of action in the FAC.

A. Fourth

Cause of Action: Implied Warranty of Merchantability

Defendant demurs to the fourth cause of action on the grounds that this claim is time barred by the applicable statute of limitations, as Plaintiff alleges that she purchased the Subject Vehicle on September 16, 2019, but did not file the original complaint until June 24, 2025, over five years later.

The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. (Mexia, *supra*, 174 Cal.App.4th at p. 1304; see *Jones v. Credit Auto Center* (2015) 237 Cal.App.4th Supp. 1, 9-10 [applying to sale of used car].) “Undisclosed latent defects ... are the very evil that the implied warranty of merchantability was designed to remedy.” (Mexia, *supra*, 174 Cal.App.4th at p. 1305 (quoting *Willis Mining, Inc. v. Noggle* (1998) 235 Cal.App. 747, 749.).)

In cases

where the defect is discovered after the warranty period, a plaintiff may still prevail by demonstrating that the defect was present at the time of purchase but remained latent until the date of discovery. (*Ortega v. Toyota Motor Sales, U.S.A., Inc.* (9th Cir. 2011) 422 Fed.Appx. 599, 600-01; see Mexia, *supra*, 174 Cal.App.4th at p. 1301 (duration of implied warranties “does not create a deadline for discovering latent defects or for giving notice to the seller”).) Otherwise, the breach occurs when the latent defect is discovered by the buyer. (*Jones*, 237 Cal.App.4th Supp. 1 at 9.) When the implied warranty relates to future events, such as product durability, Civil Code section 1791.1 limits the warranty's duration to one year after the sale. Consequently, the suit must be filed no later than five years after the sale. (Cal. Prac. Guide Civ. Pro. Before Tr. Stat. of Limitations Ch. 4-G.)

A cause of

action for a breach of the implied warranties under the Song-Beverly Act accrues when tender of delivery is made, regardless of the aggrieved party's lack of knowledge of the breach. (Ibid; citing Consumer Warranty Law in California Under the Commercial Code and the Song–Beverly and Magnuson–Moss Warranty Acts (1979) 26 UCLA L. Rev. 583, 638, fn. omitted.) Under the Song-Beverly Consumer Warranty Act, the term “delivery” is interpreted as presenting the goods to an authorized representative of the manufacturer for repair. (Robertson v. Fleetwood Travel Trailers of California, Inc., (2009) 144 Cal.App.4th 785.) Delivery can include giving, transferring, or yielding possession or control of the goods to another party, such as the manufacturer's service and repair facility. (Robertson, supra at 785.) If the consumer cannot deliver the goods for repair due to specific reasons, the manufacturer must take steps to obtain an adequate repair opportunity, such as servicing the goods at the buyer's residence or arranging for transportation to the service facility. (Ibid.)

As

stated above, Plaintiff filed the instant action on June 24, 2025, over five years after purchasing the Subject Vehicle from Defendant. The only time-related allegation in the FAC is that on September 16, 2019, she purchased the Subject Vehicle. (FAC ¶ 6.) Here, Plaintiff alleges that “Plaintiff experienced defects and non-conformities in the Vehicle including, but not limited to, recurrent check engine lights, and erroneous warnings from the tire pressure monitoring system. Plaintiff presented the Vehicle to [Defendant's] authorized repair facilities approximately four times for these complaints during the warranty period. At each visit, [Defendant's] technicians inspected the Vehicle, and at pick up represented that the Vehicle had been repaired, or it was working as designed.” (Id. ¶ 13.) However, Plaintiff has not alleged any specific details or facts regarding the repair history of the Subject Vehicle to suggest when Plaintiff obtained knowledge of facts regarding a defect. (Yeager v. Ford Motor Company (N.D. Cal. 2020) 2020 WL 95645 at *3 [“Where a latent defect exists, the statute of limitations is tolled until the plaintiff discovers, or has reason to discover, the cause of action.”].)

The demurrer to the fourth cause of action is sustained.

B.

Fifth Cause of

Action: Fraudulent Inducement – Concealment

Similarly to the above cause of action, Defendant demurs to the fifth cause of action on the grounds that this claim is time barred by the applicable statute of limitations, as Plaintiff purchased the Subject Vehicle on September 16, 2019, but did not file the original complaint until June 24, 2025, over five years later.

The statute of limitations for a cause of action for fraud is three years. (Code Civ. Proc., § 338(d).) If an action is brought more than three years after commission of the fraud, the plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint. (Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437.) To benefit from the discovery rule which postpones accrual of a fraud claim, a plaintiff bears the burden of pleading their late discovery and their inability to discover the relevant facts earlier. (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 177-178.)

The Court finds, on the face of the complaint, that the statute of limitations has run on Plaintiff's fraud claim, and Plaintiff has not pled delayed discovery or applicable tolling of the statute of limitations for the same reasons as stated above. Plaintiff does not allege specific dates on which Defendant's alleged concealment occurred. On its face, Plaintiff's claim for fraudulent concealment expired on September 16, 2022, given that the only date Plaintiff provides in the FAC is that she purchased the Subject Vehicle on September 16, 2019.

The demurrer to the sixth cause of action is sustained. Given that the demurrer is sustained on the statute of limitations ground, the Court does not proceed to address Defendant's additional arguments regarding pleading fraud with the requisite specificity.

3.

Motion to Strike

Given that the
Court sustained Defendant's demurrer in its entirety, the motion to strike is
denied as moot.

IV.

CONCLUSION

Based on the foregoing, Defendant's demurrer to
the FAC is SUSTAINED in its entirety with 30 days leave to amend.

Defendant's motion to strike is DENIED as moot.

Defendant's motions to compel initial
responses to the Discovery Requests are GRANTED. Plaintiff shall provide verified responses without objections to the
above discovery within 30 days of this order. Defendant's RFAs are deemed
admitted.

Defendant's
request for sanctions is GRANTED in the total amount of \$662.50. against Plaintiff
only. Sanctions are payable within 30 days of this order.

Dated this 21st day
of July
2026

Hon. Gary
D. Roberts

Judge
of the Superior Court